



CHAPTER cvi.

An Act to empower the lord mayor aldermen and citizens of the city of Birmingham to construct additional tramways and street improvements and to provide and work omnibuses to make further provision in regard to the health local government and improvement of the city and for other purposes. [31st July 1914.] A.D. 1914.

WHEREAS the lord mayor aldermen and citizens of the city of Birmingham (in this Act called "the Corporation") are the owners of tramways within the city and it is expedient to empower the Corporation to construct the additional tramways and the street improvements described or referred to in this Act and to provide and work omnibuses :

And whereas it is expedient to make further provision in regard to the streets and buildings in the city and that the powers of the Corporation in relation to the health local government and improvement of the city be enlarged as by this Act provided :

And whereas by section 19 (Dissolution of Museum and School of Art Committee) of the Birmingham Corporation Act 1912 the Museum and School of Art Committee which had been constituted under the Birmingham Corporation (Consolidation) Act 1883 was dissolved and it was provided that the buildings and property which had been under the control and management of that committee should be under the control and management of the Corporation and it is expedient to make provision as in this Act contained for the exercise of the powers of the Corporation in regard thereto (other than in relation to the School of Art) by a committee consisting partly of persons who are not members of the council :

A.D. 1914.

And whereas the Birmingham and Midland Institute are incorporated by the Birmingham and Midland Institute Act (17 & 18 Vict. c. xci.) and are thereby empowered to accept a grant of and purchase and hold the lands mentioned in that Act and it is expedient to empower them to acquire and hold additional lands :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes herein-after mentioned and such estimates are as follows :—

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(a) For and in connexion with the construction of the tramways authorised by this Act -	139,823
(b) For and in connexion with the electrical equipment of the tramways authorised by this Act - - - -	34,543
(c) For tramway rolling stock - - - -	18,000
(d) For and in connexion with the purchase of lands for and the execution of street improvements authorised by this Act -	46,958

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerks of the peace for the city and for the county of Warwick respectively and are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

A.D. 1914.

PART I.

PRELIMINARY.

1. This Act may be cited as the Birmingham Corporation Act 1914. Short title.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):— Incorporation of Acts.

(1) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

(2) Section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870:

Provided that the said section 19 shall be read and have effect as if the words "but nothing in this Act contained shall authorise any local authority to place or run carriages upon such tramway and to demand and take tolls and charges in respect of the use of such carriages" were omitted from that section.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires— Interpretation.

"The Corporation" means the lord mayor aldermen and citizens of the city of Birmingham;

"The city" means the city of Birmingham;

"The council" means the council of the city;

"The town clerk" "the medical officer" "the surveyor" and "the inspector of nuisances" mean respectively the town clerk the medical officer of health the surveyor

A.D. 1914.
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and any inspector of nuisances of the city and respectively include any person duly authorised to discharge temporarily the duties of those offices;

“Statutory security” and “daily penalty” have the meanings assigned to them respectively by section 4 (Interpretation) of the Act of 1903;

“The Act of 1883” means the Birmingham Corporation (Consolidation) Act 1883;

“The Act of 1903” means the Birmingham Corporation Act 1903;

“The Act of 1905” means the Birmingham Corporation Act 1905;

“The Order of 1911” means the Birmingham (Extension) Order 1911 which was confirmed by the Local Government Board’s Provisional Order (1910) Confirmation (No. 13) Act 1911;

“The Act of 1912” means the Birmingham Corporation Act 1912; and

“The tribunal” means the jury arbitrators umpire or other party to whom any question of disputed compensation under this Act is referred.

Incorporation of sections 8 and 9 of Act of 1883 as to committees.

4. Section 8 (Power to appoint committees) and section 9 (Proceedings of committees) of the Act of 1883 are incorporated with this Act and shall extend and apply to the powers and duties conferred upon the Corporation by this Act.

PART II.

TRAMWAYS AND OMNIBUSES.

Power to make tramways.

5.—(1) Subject to the provisions of this Act the Corporation may make form lay down work use and maintain the tramways herein-after described in the lines and according to the levels shown on the deposited plans and sections with all proper rails plates junctions turn-outs crossings passing-places posts poles brackets wires waiting-rooms carriage-houses sheds depôts buildings engines works and conveniences connected therewith.

(2) The tramways herein-before referred to and authorised by this Act will be situate in the city and are—

Tramway No. 1 (5 furlongs and 7·66 chains in length whereof 5 furlongs 0·12 chain will be double line and

7·54 chains will be single line) commencing in Hagley Road by a junction with the existing tramway proceeding along Hagley Road and Broad Street and terminating in Broad Street at a point 1·76 chains north-west of the intersection of Easy Row and Edmund Street: A.D. 1914.

Tramway No. 2 being part of the tramway referred to in the deposited plans as Tramway No. 2 (double line 1 furlong in length) commencing in Suffolk Street by a junction with the existing tramway proceeding along Suffolk Street and Easy Row and terminating in Easy Row at its intersection with Edmund Street:

Tramway No. 3 (single line 1 furlong 0·88 chain in length) commencing in Broad Street by a junction with Tramway No. 1 proceeding along Broad Street Easy Row and Edmund Street and terminating in Edmund Street by a junction with the existing tramway:

Tramway No. 5 (double line 3 furlongs 0·56 chain in length) commencing in Corporation Street by a junction with the existing tramway and Tramway No. 6 and proceeding along Corporation Street and Aston Road and terminating in Aston Road by a junction with the existing tramway:

Tramway No. 6 (2·31 chains in length whereof 1·70 chains will be double line and 0·61 chain will be single line) commencing in Central Place (Steelhouse Lane) by a junction with the existing tramway proceeding along Central Place Corporation Street and terminating in Corporation Street by a junction with the existing tramway and Tramway No. 5:

Tramway No. 7 (single line 1 furlong 5·68 chains in length) commencing in Dale End by a junction with the existing tramway proceeding along Dale End and Coleshill Street and terminating in Coleshill Street by a junction with the existing tramway:

Tramway No. 8 (2 furlongs 6 chains in length whereof 5·14 chains will be double line and 2 furlongs 0·86 chain will be single line) situate in Monument Road commencing at a point 1·8 chains north-east of Hagley Road and terminating by a junction with the existing tramway:

A.D. 1914.

Tramway No. 9 (6 furlongs 3·08 chains in length whereof 5 furlongs 8·73 chains will be double line and 4·35 chains will be single line) commencing in Monument Road by a junction with the existing tramway proceeding along Monument Road Icknield Street and Warstone Lane and terminating in Warstone Lane by a junction with the existing tramway :

Tramway No. 10 (double line 2 furlongs 7·24 chains in length) commencing in Warstone Lane by a junction with the existing tramway proceeding along Warstone Lane Vyse Street and Hockley Hill and terminating in Hockley Hill by a junction with the existing tramway :

Tramway No. 11 (2 furlongs 5·67 chains in length whereof 4·35 chains will be double line and 2 furlongs 1·32 chains will be single line) commencing in Whitmore Street by a junction with the existing tramway proceeding along Whitmore Street Ford Street and Lodge Road and terminating in Lodge Road by a junction with the existing tramway :

Tramway No. 12 (double line 2 miles 1 furlong 6·34 chains in length) commencing in High Street (Selly Oak) by a junction with the existing tramway proceeding along High Street (Selly Oak) and Bristol Road and terminating in Bristol Road Northfield by a junction with Tramway No. 13 :

Tramway No. 13 (double line 1 mile 4 furlongs 1·50 chains in length) situate in Bristol Road commencing by a junction with Tramway No. 12 and terminating in Bristol Road Longbridge by a junction with Tramway No. 14 :

Tramway No. 14 (double line 1 mile 8·59 chains in length) commencing in Bristol Road Longbridge by a junction with Tramway No. 13 proceeding along Bristol Road and Lickey Road and terminating in Lickey Road at the boundary of the city :

Tramway No. 15 (double line 1 mile 6·93 chains in length) commencing in Gravelly Hill by a junction with the existing tramway proceeding along Gravelly Hill Salford Bridge Road and Wheelwright Road and terminating in Wheelwright Road by a junction with Tramway No. 16 :

Tramway No. 16 (double line 6 furlongs 8·01 chains in length) commencing in Wheelwright Road by a junction

with Tramway No. 15 proceeding along Wheelwright Road the new streets (Works Nos. 17 and 18) authorised by this Act and terminating in the said Work No. 18 by a junction with Tramway No. 17: A.D. 1914.

Tramway No. 17 (double line 6 furlongs 6·87 chains in length) situate on the south side of Kingsbury Road commencing by a junction with Tramway No. 16 and terminating near to the boundary of the city.

(3) Provided that in cases where it is stated on the deposited plans that it is proposed to widen a street or road in which part of the said tramways is to be constructed before the construction thereof such part of the said tramways shall not be completed until the street or road has been widened.

(4) Provided also that Tramway No. 1 shall be constructed only subject to the following conditions:—

(a) No part of the tramway shall be constructed until so much of Broad Street as is situate between its junction with Baskerville Place and its junction with Easy Row has been widened so that the width of the street is not less than sixty feet and the width of the road is not less than thirty-six feet between the kerbs:

(b) At the termination of the tramway a junction shall be formed with Tramway No. 2 authorised by this Act.

6.—(1) The tramways and works authorised by the foregoing provisions of this Part of this Act shall for all purposes form part of the tramway undertaking of the Corporation and the provisions of Part III. (Tramways) of the Act of 1903 (except sections 40 42 43 and 44 thereof) and of the enactments incorporated with that Act and any byelaws and regulations made in pursuance thereof respectively so far as such provisions byelaws and regulations are not inconsistent with the provisions of this Act shall extend and apply to the said tramways and works as if they were authorised by the Act of 1903. Works to form part of tramway undertaking of Corporation.

(2) Provided that no post or other apparatus shall be erected on any carriageway in connexion with the tramways authorised by this Act without the consent of the Board of Trade.

(3) Provided also that the powers of subsection (1) of section 16 (Power to make additional crossovers and to double tramway lines) of the Act of 1903 except the powers thereof

A.D. 1914. — relating to crossovers and the powers of section 17 (Junction with tramways outside city) of that Act shall not be exercised with reference to the tramways authorised by this Act without the consent of the Board of Trade.

(4) The provisions of section 11 (Use of tramway posts by Postmaster-General) of the Act of 1912 shall extend to the tramways authorised by this Act.

For protection of University of Birmingham.

7. The following provisions for the protection and benefit of the University of Birmingham (in this section called "the University") shall except so far as may be otherwise agreed between the University and the Corporation apply and have effect (that is to say):—

The Tramway No. 3 shall be constructed only subject to the following conditions:—

(1) The said tramway shall not be used for the conveyance of passengers:

(2) Cars may be taken over the said tramway only as follows:—

(a) During the interval between the commencement of any University vacation and the commencement of the following term or upon Sundays or upon holidays observed by the University;

(b) During any University term upon days other than Saturday Sunday and such holidays as aforesaid before the hour of nine-thirty a.m. and after the hour of six p.m.;

(c) Upon Saturday during any University term before the hour of nine-thirty a.m. and after the hour of twelve-thirty p.m.;

(d) Upon any occasion of special pressure of tramway traffic or emergency and in case of dispute as to what circumstances constitute such pressure or emergency the decision of the stipendiary magistrate of Birmingham for the time being shall be final and conclusive.

For protection of London and North Western Railway Company.

8. In constructing and maintaining the tramways hereby authorised and any works connected therewith and in constructing and maintaining any works for the purpose of working the said tramways where the same are intended to cross any tunnel or bridge carrying any road over or under any railway railway

siding or works belonging to the London and North Western Railway Company (herein-after called "the company") the following provisions shall have full force and effect:—

A.D. 1914.

- (1) Before commencing any works which may affect the structure of any such tunnel or bridge the Corporation shall give fourteen days' notice in writing to the company of their intention to execute such works and such notice shall be accompanied by plans sections and specifications showing the nature and extent of the intended works and the said works shall be constructed and carried on in conformity only with such plans and sections and to the reasonable satisfaction of the engineer of the company:
- (2) The Corporation shall not in any way vary alter or interfere with the structure of any such tunnel or bridge and in the construction and maintenance of the said tramway and works the Corporation shall not injuriously affect the said structure:
- (3) In the event of any injury being caused to such tunnel or bridge by the construction maintenance repairing user or removal of the said tramway and works the company may after giving to the Corporation reasonable notice in writing at the expense of the Corporation restore such tunnel or bridge or the part or parts thereof which may be injured to as good a state and condition as they were in before such injury was occasioned and the Corporation shall indemnify the company against all sums costs and expenses which they may reasonably pay or be put to in repairing or maintaining so much of the road over such tunnel or bridge as the Corporation are liable to maintain and repair under section 28 of the Tramways Act 1870:
- (4) Whenever and so often as the company shall require in the exercise of their existing statutory powers to widen lengthen strengthen reconstruct alter or repair such tunnel or bridge over their railway or to widen or alter their railway thereunder and it shall be necessary for effecting any of such purposes that the working and user of the said tramway over such tunnel or bridge shall be wholly or partially temporarily stopped or delayed or that the tramway should

A.D. 1914.
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be temporarily diverted or wholly or in part temporarily taken up or removed the company shall except in case of emergency (when they shall give the longest notice practicable) give to the Corporation one month's notice in writing requiring such stoppage delay or diversion taking up or removal and the working and user of the tramway shall be stopped or delayed or such tramway shall be diverted or taken up or removed accordingly by the Corporation but only for so long as shall be absolutely necessary for effecting such purpose and without the company being liable for any compensation claims demands damages costs and expenses for or in respect of such stoppage or delay or in any way relating thereto:

- (5) In case any such strengthening reconstruction or alteration is rendered necessary by reason of the construction of any such tramway and would not otherwise be necessary the company shall before effecting the same give to the Corporation twenty-eight clear days' notice accompanied by sufficient plans sections and specifications and may then proceed with all reasonable despatch to execute such works as may be reasonably necessary in that behalf and the reasonable expense of so doing shall be repaid to the company by the Corporation who shall also pay to the company any additional expense which they may reasonably incur or be put to in effecting any such strengthening reconstruction or alteration or any widening lengthening or repairing or in the maintenance of the said tunnel or bridge by reason of the existence of the said tramway or any of the works connected therewith:
- (6) All works which may be necessary in constructing and maintaining any tramway or for working the tramways over the said tunnel or bridge and would not otherwise be necessary shall be constructed and maintained in all things at the expense of the Corporation and to the reasonable satisfaction of the principal engineer of the company:
- (7) During the construction of the said tramways and works the Corporation shall bear and on demand pay to the company all reasonable expense of employment by them of a sufficient number of inspectors or watchmen

to be appointed by the company for watching their railways and works with reference to and during the execution of the intended works and for preventing as far as may be all interference obstruction danger and accident which may arise from any of the operations or from the acts or defaults of the Corporation or their contractors or any person or persons in the employment of the Corporation or their contractors with reference thereto: A.D. 1914

- (8) No stays posts wires or other apparatus shall without the previous consent in writing of the company which shall not be unreasonably withheld be attached to any bridge or other work of the said company:
- (9) If having regard to the proposed position of any works by this Act authorised when considered in relation to the works of the railway at any point where the said tramway will be constructed over the railway and works of the company it becomes necessary in order to avoid danger from the wires of the Corporation breaking or falling that the electric telegraphic telephonic or signal wires or apparatus of the railway should be altered the company may execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Corporation:
- (10) If the access to Monument Lane Station is affected during and by the construction of the said tramway the Corporation shall provide such temporary means of access to such station as the company may reasonably require and where the said tramway will pass in front of the entrances to the said station of the company no carriage used on the tramway shall be stopped or be permitted to be stopped for the distance thereon extending in front of the said entrances to such station and for a length of ten yards at each end of such distance without the consent of the chief engineer of the company except for and only for so long as shall be reasonably necessary for the purpose of discharging and taking up passengers and except when such stoppage is occasioned by circumstances over which the Corporation have no control:

A.D. 1914.

(11) The Corporation and the company may agree for any variation or alteration in the works in this section provided for or in the manner in which the same shall be executed :

(12) If any difference shall arise between the Corporation and the company or their respective engineers as to the meaning of this section or as to any plans sections and specifications herein-before provided for or the method of executing the same or as to any losses damages or expenses referred to in this section such difference shall be referred to and determined by an arbitrator to be agreed upon between the Corporation and the company as the case may be or failing agreement to be appointed by the Board of Trade on the application of either of the parties and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For pro-
tection of
Birmingham
Canal
Company.

9. In constructing and maintaining the Tramway No. 1 hereby authorised and any works connected therewith and in constructing and maintaining any works for the purpose of working the said tramway where the same is intended to cross the tunnel or bridge carrying Broad Street over the canal of the company of proprietors of the Birmingham Canal Navigations (in this Act called "the canal company") the following provisions shall have full force and effect:—

(1) Before commencing any works which may affect the structure of the said tunnel or bridge the Corporation shall give fourteen days' notice in writing to the canal company of their intention to execute such works and such notice shall be accompanied by plans sections and specifications showing the nature and extent of the intended works and the said works shall be constructed and carried on in conformity only with such plans and sections and to the reasonable satisfaction of the engineer of the canal company :

(2) The Corporation shall not in any way vary alter or interfere with the structure of the said tunnel or bridge and in the construction and maintenance of the said tramway and works the Corporation shall not injuriously affect the said structure :

(3) In the event of any injury being caused to the said tunnel or bridge by the construction maintenance repairing user or removal of the said tramway and works or by the removal of the existing roadway the canal company may after giving to the Corporation reasonable notice in writing at the expense of the Corporation restore the said bridge or the part or parts thereof which may be injured to as good a state and condition as they were in before such injury was occasioned : A.D. 1914.

(4) Whenever and so often as the canal company shall require in exercise of their existing statutory powers to widen lengthen strengthen reconstruct alter or repair the said tunnel or bridge over their canal or to widen or alter their canal thereunder and it shall be necessary for effecting any of such purposes that the working and user of the said tramway over the said tunnel or bridge shall be wholly or partially temporarily stopped or delayed or that the tramway should be temporarily diverted or wholly or in part temporarily taken up or removed the canal company shall except in the case of emergency (when they shall give the longest notice practicable) give to the Corporation one month's notice in writing requiring such stoppage delay or diversion taking up or removal and the working and use of the tramway shall be stopped or delayed or such tramway shall be diverted or taken up or removed accordingly by the Corporation but only for so long as shall be absolutely necessary for effecting such purpose and without the canal company being liable for any compensation claims demands damages costs and expenses for or in respect of such stoppage or delay diversion taking up or removal or in any way relating thereto :

(5) In case any such strengthening reconstruction or alteration is rendered necessary by reason of the construction or use of the said tramway and would not otherwise be necessary the canal company shall before effecting the same give to the Corporation twenty-eight clear days' notice accompanied by sufficient plans sections and specifications and may then proceed with all reasonable dispatch to execute such

A.D. 1914.

works as may be reasonably necessary in that behalf and the reasonable expense of so doing shall be repaid to the canal company by the Corporation who shall also pay to the canal company any additional expense which they may reasonably incur or be put to in effecting any such strengthening reconstruction or alteration or any widening lengthening or repairing or in the maintenance of the said tunnel or bridge by reason of the existence of the said tramway or any of the works connected therewith:

- (6) All works which may be necessary in maintaining the said tramway or for working the tramway over the said tunnel or bridge and would not otherwise be necessary shall be constructed and maintained in all things at the expense of the Corporation and to the reasonable satisfaction of the engineer of the canal company:
- (7) During the construction of the said tramway and works the Corporation shall bear and on demand pay to the canal company all reasonable expense of employment by them of a sufficient number of inspectors or watchmen to be appointed by the canal company for watching their canal and works with reference to and during execution of the intended works and for preventing as far as may be all interference obstruction danger and accident which may arise from any of the operations or from the acts or defaults of the Corporation or their contractors or any person or persons in the employment of the Corporation or their contractors with reference thereto:
- (8) The Corporation and the canal company may agree for any variation or alteration in the works in this section provided for or in the manner in which the same shall be executed:
- (9) If any difference shall arise between the Corporation and the canal company or their respective engineers as to the meaning of this section or as to any plans sections and specifications herein-before provided for or the method of executing the same or as to any losses damages or expenses referred to in this section such difference shall be referred to and determined

by an arbitrator to be agreed upon between the Corporation and the canal company or failing agreement to be appointed by the Board of Trade on the application of either of the parties and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

A.D. 1914.

10. Tramways Nos. 1 2 and 3 authorised by this Act shall be completed within eight years and the remaining tramways authorised by this Act shall be completed within five years from the passing of this Act and on the expiration of those respective periods the powers granted by this Act to the Corporation for executing the said tramways or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Period for completion of tramways.

11.—(1) The Corporation shall not exhibit or permit the exhibition of advertisements in respect of which a payment is made to the Corporation on any posts or standards of the Corporation erected in any street other than advertisements relating to the service of tramcars or omnibuses.

Posts not to be used for advertisements.

(2) In case of any contravention of the provisions of this section the Corporation shall be liable to a penalty not exceeding five pounds.

12.—(1) The Corporation may provide (but shall not manufacture) and maintain motor omnibuses and may run the same within the city demanding and taking the like tolls fares and charges for the conveyance of passengers therein as they are for the time being authorised to demand and take for passengers travelling on the tramways of the Corporation.

Power to provide and run motor omnibuses.

(2) The Corporation may purchase by agreement take on lease and hold lands and buildings and may erect on any lands acquired by them for or which they are authorised to appropriate and use for the purposes of this section or of their tramways undertaking omnibus carriage and motor houses buildings and sheds and may provide such plant appliances and conveniences as may be requisite or expedient for the establishment maintenance running and equipment of such motor omnibuses but the Corporation shall not create or permit any nuisance on any such lands.

(3) The Corporation may make byelaws for regulating the travelling and for the prevention of nuisances in or upon their

A.D. 1914. motor omnibuses Provided that any such byelaw shall be made subject and according to the provisions of sections 46 and 47 of the Tramways Act 1870 and those provisions shall apply accordingly.

(4) Every motor omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.

(5) The Corporation shall perform in respect of the motor omnibuses provided under this section all the services in regard to the conveyance of mails which are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway as defined by that Act and authorised as in that Act stated.

(6) No parcels or goods shall be carried on the motor omnibuses provided under this section except---

(a) Such as the Postmaster-General may require under the Conveyance of Mails Act 1893 or any amendment thereof:

(b) Newspapers :

(c) Passengers' luggage.

(7) The motor omnibuses provided under this section shall not be used to take special parties except upon the omnibus routes prescribed from time to time by the byelaws.

(8) In this section the expression "motor omnibus" means any stage carriage used to carry passengers at separate fares and moved by mechanical power including in that expression steam electrical and every other motive power not being animal power.

(9) The undertaking authorised by this section shall be deemed to form part of the tramways undertaking of the Corporation and the following provisions of the Act of 1903 the Act of 1905 and the Act of 1912 shall extend and apply to and for the purposes of this section as if those provisions were with all necessary modifications re-enacted in this Part of this Act Provided that in the application of such provisions the same shall be read and have effect as if omnibuses were carriages used on the Corporation tramways:

The provisions herein-before referred to are—

The Act of 1903—

Section 32 (Corporation may appoint stopping and starting places);

Section 47 (Penalty for malicious damage);

A.D. 1914.

Section 52 (Application of revenue of tramway undertaking and deficiency of receipts):

The Act of 1905—

Section 17 (Shelters or waiting-rooms):

The Act of 1912—

Section 10 (Restrictions not to apply to special carriages);

Section 12 (Lost property).

(10) Provided that—

(a) All expenditure in respect of motor omnibuses shall be defrayed and all receipts shall be applied as if the motor omnibuses were part of the tramways undertaking but such expenditure and receipts shall (so far as reasonably practicable) be distinguished from the receipts and expenditure upon or in connexion with the remainder of such undertaking:

(b) Notwithstanding anything contained in section 17 of the Act of 1905 as to shelters or waiting-rooms in its application to this Act no shelter or waiting-room shall be erected or maintained in any street or road so as to interfere with or render less convenient the access to or exit from any station of any railway company.

PART III.

STREET IMPROVEMENTS.

13.—(1) Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the works herein-after described together with all necessary or proper works and conveniences connected therewith or incident thereto and may enter on take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the construction of such works or for the purpose of providing space for the erection of buildings adjoining or near to such works or for other the purposes of this Part of this Act.

Power to construct street improvements.

A.D. 1914.

(2) The works herein-before referred to and authorised by this Part of this Act will be situate in the city and are—

Work No. 1 A widening of High Street (Selly Oak) and of Bristol Road on the north-western side commencing at Chapel Lane and terminating at Frederick Road :

Work No. 2 A widening of Bristol Road on the south-eastern side commencing at Oaktree Lane and terminating at the north-eastern boundary wall of No. 1 Lansdowne Villas :

Work No. 3 An improvement of the north-eastern corner of Bristol Road and Langleys Road commencing at the south-western boundary wall of No. 2 Lansdowne Villas in Bristol Road and terminating on the north-eastern side of Langleys Road at a point 0·48 chain south-east of Langleys Road :

Work No. 4 A widening of Bristol Road on the south-eastern side commencing at the south-western boundary wall of Bonshaw House and terminating at the north-eastern boundary fence of Bodnant :

Work No. 5 A widening of Bristol Road on the north-western side commencing at Lodge Hill Road and terminating at the north-eastern fence of the private road leading to St. Mary's Church :

Work No. 6 A widening of Bristol Road on the north-western side commencing at the south-western fence of the footpath on the south-west side of Gwynfa and terminating at Weoley Park Road :

Work No. 7 A widening of Bristol Road on the north-western side commencing at Weoley Park Road and terminating at White Hill Lane :

Work No. 8 A widening of Bristol Road on the north-western side commencing at White Hill Lane and terminating at the north-eastern boundary hedge of Valhalla :

Work No. 9 A widening of Bristol Road on the south-eastern side commencing at the north-eastern boundary wall of No. 197 Bristol Road and terminating at the south-western boundary fence of No. 276 Bristol Road :

Work No. 10 A widening of Bristol Road on the north-western side commencing at the north-eastern forecourt

wall of No. 208 Bristol Road and terminating at No. 262 A.D. 1914.
Bristol Road :

Work No. 11 A widening of Bristol Road on the north-western side commencing at a point 2·70 chains north-east of the point of intersection of the centre lines of that road and Quarry Road and terminating at a point 0·83 chain north of the intersection of the centre lines of Bristol Road and South Road :

Work No. 12 A widening of Bristol Road on the south-eastern side commencing at a point 3·20 chains south-west of Quarry Road and terminating at the north-eastern boundary hedge of the side entrance to Sunny Side :

Work No. 13 A widening of Bristol Road on the south-eastern side commencing at the south-western boundary of Tintagel and terminating at Longbridge Lane :

Work No. 14 A widening of Bristol Road on the south-eastern side commencing at a point 2·12 chains south-west of the point of intersection of the centre lines of that road and Longbridge Lane and terminating at the entrance to the Austin Motor Works :

Work No. 15 A widening of Bristol Road on the north-western side commencing at a point 1·53 chains and terminating at a point 10·03 chains south-west of the point of intersection of the centre lines of that road and Longbridge Lane :

Work No. 16 A widening of Lickey Road on the south-eastern side commencing at the south-western boundary fence of Oaktree Cottage and terminating at the boundary of the city :

Work No. 17 A new street (a continuation of Salford Bridge Road) commencing at Wheelwright Road at its junction with Canal Lane and terminating at Bromford Lane at its junction with Montpellier Road :

Work No. 18 A new street commencing in Bromford Lane opposite to Montpellier Road and terminating in Kingsbury Road at a point 10 chains measured along that road in an easterly direction from its junction with Holly Lane :

A.D. 1914.

Work No. 19 A widening of Kingsbury Road on the south side commencing at the termination of the last-mentioned work and terminating at a point 1·10 chains south of the point of intersection of the last-mentioned road and Old Chester Road.

Power to
alter steps
areas pipes
&c.

14.—(1) Within the limits of deviation shown on the deposited plans the Corporation may raise sink or otherwise alter the position of any of the steps areas cellars windows and pipes or spouts belonging to any house or building and also the drains and the pipes or wires for the purpose of conveying water electricity or gas to any house or other place and may remove all other obstructions so that the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the provisions of section 308 (Compensation in case of damage by local authority) of the Public Health Act 1875 shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act.

(2) Provided that the Corporation shall not raise sink or otherwise alter or interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except under and subject to the provisions of the said Act.

Limits of
deviation

15. In the construction of the works authorised by this Part of this Act the Corporation may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding two feet either upwards or downwards.

For pro-
tection of
Midland
Railway
Company
and Great
Western and
Midland
Railways
Joint
Committee.

16. In constructing and maintaining the street widening works and tramways by this Act authorised where the same will affect the railway lands and property of the Midland Railway Company and the Great Western and Midland Railways Joint Committee (each of whom is herein-after referred to as "the railway company") the Corporation shall (except so far as it may be otherwise agreed between the railway company and the Corporation) be subject to the following conditions:—

(1) All works crossing or affecting the railway or the lands and property of the railway company shall be executed under the superintendence (if the same

be given) and to the reasonable satisfaction of the principal engineer for the time being of the railway company (herein-after referred to as "the said engineer") and according to plans specifications and drawings to be previously submitted to and reasonably approved by him in writing or in case of difference by an arbitrator appointed in pursuance of this section: A.D. 1914.

Provided that if for twenty-eight days after such plans drawings and specifications shall have been submitted to the said engineer he shall fail to give notice to the Corporation of his objections thereto he shall be deemed to have approved thereof:

- (2) If within twenty-eight days after the receipt of any such plans drawings and specifications the railway company give to the Corporation notice that they desire themselves to construct so much of the works (other than the laying or alteration of any sewer gas electric or other main or the construction of the approaches to any bridge) as will affect the railway lands and property of the railway company that company may themselves execute such works (other than as aforesaid) and recover the reasonable costs thereof from the Corporation:
- (3) The arches or openings carrying the proposed widenings of the Bristol Road Bridge over the railway lands and property of the railway company shall be constructed so as to clear the existing railway of the railway company and to leave space for the construction of a line of railway in addition to and on the north-east side of the existing line of railway in the same manner as the existing bridge and shall be of such spans and headways as shall be reasonably approved by the said engineer such spans and headways being in any case not less than those of the respective arches carrying the existing road over the railway lands and property of the railway company:
- (4) The Corporation shall bear the whole cost of the widenings of the said bridge and the approaches thereto but from and after the completion of the widenings of the said bridge and the approaches

A.D. 1914.

thereto the maintenance of the structure of the said bridge as widened and of the existing approaches shall be carried out by and at the cost of the railway company :

- (5) In the event of any injury being caused to the railway and property of the railway company to Suffolk Street Tunnel or to Bristol Road Bridge or the approaches thereof by the construction of the works by this Act authorised or the maintenance repairing user or removal of the tramways or the works in connexion therewith the Midland Railway Company may restore such railway property tunnel and bridge or any part thereof which may be injured to as good a state and condition as it was in before such injury was occasioned and the reasonable expense thereby incurred by the Midland Railway Company shall be repaid to them by the Corporation :
- (6) The railway company shall give to the Corporation all reasonable facilities for carrying out the works affecting the railway lands and property of the railway company and such of these works as the Corporation may execute under this section shall be so constructed and maintained as to cause no injury to the railway works and property of the railway company and as little interference as possible with the passage or conduct of traffic thereon and if in consequence of the execution of such works or the failure thereof any injury be caused to the railway works and property of the railway company or any interruption be caused to the traffic the Corporation shall make full compensation to the railway company in respect of such injury or interruption the amount of such compensation unless agreed upon to be determined by arbitration :
- (7) Whenever and so often as the railway company shall require in the exercise of their existing statutory powers to widen lengthen strengthen reconstruct alter or repair such bridge or to widen or alter the railway or to lift or support such bridge and it shall be necessary for any of such purposes that the working and user of the tramways over such bridge should be wholly or partially temporarily stopped or

delayed or that such tramway should be temporarily diverted or wholly or in part temporarily taken up or removed and shall except in cases of emergency (when they shall give the longest notice practicable) give to the Corporation one month's notice in writing requiring such stoppage delay or diversion taking up or removal the working and user of such tramway shall be stopped or delayed or such tramways shall be diverted or taken up or removed accordingly by the Corporation but only for so long as may be absolutely necessary for effecting any such purpose as aforesaid and without the railway company being liable for any compensation claims and demands charges costs and expenses for or in respect of such stoppages or delay or in any way relating thereto:

- (8) The Corporation shall also pay to the railway company any reasonable additional expense which they may incur or be put to in effecting any such widening lengthening altering or maintaining of the said bridge or in effecting any such strengthening reconstruction alterations or repairs by reason of the existence of the tramways or the equipment thereof:
- (9) If by reason of the construction of the tramways over the said tunnel or bridge or the user thereof it becomes necessary to strengthen or reconstruct the fabric of such tunnel or bridge and such strengthening or reconstruction would not otherwise be necessary the railway company shall give notice accompanied by sufficient plans sections and specifications to the Corporation of such works as may be necessary and may after twenty-eight days from the date of the notice proceed with all due despatch to execute such works as may be reasonably necessary in that behalf and the reasonable expense of so doing shall be repaid to the railway company by the Corporation:
- (10) If having regard to the proposed position of any works by this Act authorised when considered in relation to the works of the railway company at any point where the proposed tramways will be constructed over the railway and works of the railway company it becomes necessary in order to avoid danger from the breaking or falling of wires that the electric

A.D. 1914.
—

telegraphic telephonic or signal wires or apparatus belonging to or maintained by the railway company should be cabled or otherwise altered the railway company may execute any works reasonably necessary for such alteration and the reasonable expense of executing such work shall be borne by the Corporation :

- (11) The Corporation shall bear and pay to the railway company the expense of the employment by the railway company during the execution repair or maintenance of any work under this Act affecting the said railway of a sufficient number of inspectors watchmen and signalmen to be appointed by the railway company for watching and signalling the same with reference to and during the execution of any work of the Corporation and for preventing all interference obstruction danger or accident from any of the operations or from the acts or defaults of the Corporation or their contractors or any person in the employment of the Corporation or of their contractors with reference thereto :
- (12) If during the execution or by reason of the failure of any of the works or any act or omission of the Corporation or of their contractors or of any person in the employ of the Corporation or of their contractors the railway of the railway company or any person or persons using the same shall be injured or damaged or the traffic thereon delayed such injury or damage shall be forthwith made good by the Corporation at their own expense and in the event of their failure so to do the railway company may make good the same and recover the expense thereof from the Corporation and the Corporation shall indemnify the railway company against all losses upon or against them which the railway company may sustain and shall pay all costs charges and expenses which the railway company may be put to or incur during such execution or by reason of such failure act or omission as aforesaid :
- (13) The Corporation shall not except with the previous consent in writing of the railway company purchase or acquire any lands of the railway company coloured

red on the plan signed by William Barton Worthington on behalf of the railway company and by Henry Edward Stilgoe on behalf of the Corporation but the Corporation may take and the railway company shall give and grant accordingly an easement or right of using so much of the lands of the railway company coloured red on the said plan as may be necessary for the works by this Act authorised (including the laying down maintenance and user of sewers gas and water mains electric lines and other works and conveniences) and for other the purposes of this Act and shall pay to the railway company for such easement or right to be acquired by them such sum as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Acts: A.D. 1914.

(14) If the railway company shall at any time hereafter be desirous of obtaining access from the widened approaches to the Bristol Road Bridge to any station or depôt which the railway company may construct or be about to construct alongside their railway the Corporation shall at the expense of the railway company afford all reasonable and proper facilities for such access:

(15) Any dispute or difference that may arise between the railway company and the Corporation with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof (except as provided by subsection (13) of this section) shall be settled by arbitration by an engineer or other fit person to be nominated by the President of the Institution of Civil Engineers on the application of the railway company or the Corporation and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

17. With respect to Work No. 19 hereby authorised and any works connected therewith the following provisions shall have full force and effect:—

(1) The widening or improvement of Kingsbury Road which is carried over the canal company's canal by a bridge known as Butler's Bridge shall be effected by an additional bridge and accordingly the Corporation shall

For further protection of Birmingham Canal Company.

A.D. 1914.

at their own expense construct such additional bridge over the said canal towing path and works of the canal company in a good substantial and workmanlike manner and to the reasonable satisfaction of the engineer of the canal company and according to plans sections and specifications which shall have been approved by him or settled by arbitration as hereinafter mentioned and in particular the clear opening or span of the said additional bridge shall be sufficient to clear or leave unobstructed the waterway of the canal and a space of not less than six feet eight inches wide on the towing path side thereof as indicated upon the plan signed by Archibald William Willet on behalf of the canal company and Henry Edward Stilgoe on behalf of the Corporation (hereinafter referred to as "the signed plan") and the soffit of the arch at the crown or underside of the girders for the whole length of crossing over the canal and towing path of the canal company shall be not less than eight feet six inches above the present weir level of the canal and in the case of an arch no part of the underside thereof shall be less than seven feet six inches above the present level of the said towing path:

- (2) The Corporation shall at their own expense at all times for ever after the said additional bridge shall have been completed keep the same and any future bridge to be erected or made in lieu thereof (and which shall be at the same place and of the like dimensions and capacity as are herein-before severally mentioned) together with all works belonging to or connected therewith respectively in good and complete repair to the reasonable satisfaction of the engineer for the time being of the canal company and in case of any want of repair to such bridge or substituted bridge or any work belonging thereto or connected therewith and whether such want of repair shall arise from the sinking of such bridge or substituted bridge or any part thereof or from any other cause whatsoever and upon notice in writing thereof being given by the canal company or their clerk to the Corporation then the Corporation shall within the space of twenty-

eight days after such notice commence the repairs or as the case may require the raising or rebuilding or reconstruction of the bridge which shall be out of repair or such part or parts thereof as it shall for the time being be requisite to repair raise or rebuild or reconstruct and proceed therein with all reasonable expedition until such repairing raising or rebuilding or reconstruction shall be wholly completed and if the Corporation shall fail to commence the same within the said space of twenty-eight days or to proceed therein with all reasonable expedition as aforesaid it shall be lawful for the canal company to make such repairs to any such bridge or works and to raise or rebuild or reconstruct the same or such part thereof as shall be necessary and all the reasonable expenses thereof shall be repaid by the Corporation to the canal company:

A.D. 1914.

Provided always that during the progress of constructing such bridge and at all future times during any repairs raising rebuilding or reconstruction thereof the engineer for the time being of the canal company with the requisite assistants and workmen shall have free access to such bridge and full permission to inspect the workmanship and materials thereof:

- (3) The Corporation shall not take use or appropriate so much of the land or property of the canal company delineated and numbered 130 on the deposited plans as is coloured red on the signed plan without their consent under their common seal had and obtained but the Corporation may acquire and the canal company shall sell to them such an easement across or over the land so coloured red on the signed plan as may be necessary for constructing or maintaining the said additional bridge and the Corporation shall pay to the canal company for any such easement to be acquired by them such sum as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Acts:
- (4) The additional bridge shall be constructed so as to leave a space of not less than three feet between such bridge and the existing bridge:

A.D. 1914.

- (5) The Corporation shall not in any way alter or interfere with the structure of the existing bridge and shall not in the construction maintenance repair or user of the said additional bridge or any of their works except so far as may be reasonably necessary obstruct or interfere with the free uninterrupted and safe user of the said canal or other work belonging to the canal company or any traffic thereon :
- (6) The Corporation shall give fourteen days' notice in writing to the canal company of their intention to commence the construction of the said additional bridge or any works which will affect or in anywise interfere with the structural works thereof and shall at the same time send sufficient plans sections and specifications or other information to show the nature of such works :
- (7) The Corporation shall be responsible for and make good to the company all losses damages and expenses which may be occasioned to the canal company or any of their works or property or to the traffic on their canals or to any company or person using the same by or by reason of the execution failure or user of any of the intended works or by or by reason of any act default or omission of the Corporation or of any person in their employ or of any contractors for the intended works or any part thereof and the Corporation shall effectually indemnify and hold harmless the canal company from all claims and demands upon or against them by reason of such execution failure or user or of any such act default or omission :
- (8) With respect to the lands belonging to the canal company and numbered 122 123 125 and 126 on the deposited plans the Corporation shall at the expense of the Corporation construct and provide for the benefit of the canal company a new paved entrance to the approach road to the canal company's wharf known as Erdington Wharf with proper drains and other works connected therewith and shall also erect a brick wall at least as high as the present wall along the new boundary of the said lands numbered 122 and 123 on the said plans and shall fence off the said lands numbered 125 and 126 on the said

plans from the adjoining lands of the canal company with an unclimbable iron fence at least five feet high and provide ditches and drains where required and also provide and erect suitable gates at the entrance to the said approach road and also from the said approach road to the said adjoining lands of the canal company: A.D. 1914.

All the said accommodation works shall be completed to the reasonable satisfaction of the engineer of the canal company and the said fences and gates shall become the property of the canal company:

- (9) The widening of the said road where it adjoins the property of the canal company and all works connected therewith shall be completed at the expense of the Corporation and the canal company shall not whether as frontagers or otherwise be required to contribute to such expense:
- (10) If any difference shall arise between the Corporation and the canal company or their respective engineers as to the meaning of this section or as to any plans sections and specifications herein-before provided for or the method of executing the same or as to any losses damages or expenses referred to in this section such difference shall be referred to and determined by an arbitrator to be agreed upon between the Corporation and the canal company or failing agreement to be appointed by the Board of Trade on the application of either of the parties and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

PART IV.

STREETS BUILDINGS AND SEWERS.

18. Every continuation of an existing street shall for the purposes of the Public Health Acts and of this Act and of any other Act or byelaw for the time being in force within the city be deemed to be a new street. Continuation of existing street to be deemed new street.

19.—(1) When a road footpath or way is about to become a new street within the meaning of the Public Health Acts or of this Act or of any other Act or byelaw for the time being in force within the city but the land on only one side of such Further provision as to new streets.

A.D. 1914. street has been or is in course of being built on the Corporation may instead of requiring the owner of the land built on or in course of being built on to widen such road footpath or way to a width prescribed by the byelaws in force in the city require such owner to widen such road footpath or way so as to give a width of not less than one-half of such prescribed width from the old centre line of such road footpath or way to the boundary thereof adjoining such land.

(2) Provided that if and when the land on the opposite side of such road footpath or way shall be in course of being built on the owner of such land shall complete the widening of such road footpath or way so as to comply in all respects with the byelaws of the Corporation.

Means of
escape from
shops in
case of fire.

20.—(1) Every new building exceeding thirty-five feet in height used or intended to be used as a shop in which building sleeping accommodation is or is intended to be provided for the use of persons employed in or about such shop shall be provided on the storeys the upper surface of the floor whereof is above twenty-two feet from the street level with such means of escape in the case of fire for the persons dwelling or sleeping therein as may be reasonably required by the Corporation under the circumstances of the case and no such building shall be occupied until the Corporation shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

(2) From and after the first day of January nineteen hundred and fifteen the Corporation in the case of every existing building exceeding thirty-five feet in height and used or intended to be used as a shop and in which building sleeping accommodation is or is intended to be provided if in their opinion such building is not provided with proper and sufficient means of escape therefrom in case of fire for the persons dwelling or sleeping therein may at any time serve on the owner of such building a notice requiring him within a reasonable time to be specified in such notice to provide such means of escape as in the circumstances of the case can reasonably be required and the owner shall thereupon take the necessary steps to provide the means of escape so required.

Any person aggrieved by any requirement of the Corporation under this subsection may appeal to a court of summary jurisdiction within seven days after the service of such notice provided

he give twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs. A.D. 1914.

Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this subsection.

(3) For the purposes of this section the height of any building shall be measured from the street level to the highest part of the wall where the same terminates at the eaves.

(4) Nothing contained in this section shall be deemed to interfere with the operation of section 14 (Provision of means of escape in case of fire) and section 15 (Byelaws for means of escape from fire) of the Factory and Workshop Act 1901 or of any Act amending the same.

(5) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

21. The words "in any street" in subsection (3) of section 65 (Provisions as to separate system of sewerage) of the Act of 1903 are hereby repealed. Provisions as to separate system of sewerage.

22. If in any street not repairable by the inhabitants at large the Corporation for the purpose of main drainage or otherwise shall require a larger sewer to be made than they consider necessary for the ordinary sewerage of such street or the lands draining thereto the person laying out such street shall construct such enlarged sewer in accordance with the requirements of the Corporation and the additional cost thereof as ascertained by the surveyor shall be paid by the Corporation. Power to require specially enlarged sewer in new street.

23. Nothing in this Part of this Act (except the sections whereof the marginal notes are respectively "Provisions as to separate system of sewerage" and "Power to require specially enlarged sewer in new street") or in any byelaw made thereunder shall apply to any building (not being a dwelling-house) belonging to any railway company and used by such company as a part of or in connexion with their railway under any Act of Parliament or to any street so belonging and used as aforesaid nor to any land upon which any such building is erected or is in course of being erected. Saving for railway companies.

A.D. 1914.

PART V.

INFECTIOUS DISEASE AND SANITARY PROVISIONS.

For prevent-
ing spread of
infectious
disease.

24.—(1) Any parent or guardian having personal charge of a child in attendance at a school who is aware of or has reason to suspect the occurrence of any infectious disease in any member of the family and who fails forthwith to notify such occurrence to the head teacher of the school shall be liable to a penalty not exceeding twenty shillings.

(2) If any person not less than sixteen years of age while suffering from any infectious disease wilfully exposes himself without proper precautions against spreading the disease in any street public place shop inn or any public conveyance or being in charge of any person so suffering wilfully exposes such sufferer he shall be liable to a penalty not exceeding five pounds.

(3) (a) The Corporation shall cause to be given public notice of the effect of the provisions of this section by advertisement in two newspapers published or circulating in the city and by handbills and otherwise in such manner as they think sufficient and this section shall come into operation at such time not being less than one month after the first publication of such advertisement as aforesaid as the Corporation may fix.

(b) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this subsection have been complied with.

(4) The provisions of this section shall cease to be in force at the expiration of five years from the date of the passing of this Act unless they shall have been continued by Act of Parliament or by an order made by the Local Government Board which order the Local Government Board are hereby empowered to make.

(5) In this section the expression "infectious disease" includes measles German measles whooping cough and chicken-pox.

Houses
infested with
vermin to be
cleansed.

25.—(1) If the medical officer has reasonable cause to suppose that any house is infested with vermin he or any inspector of nuisances may enter such house and may inspect and examine the same and any articles therein for the purpose of ascertaining whether such house is infested with vermin.

(2) Where on the certificate of the medical officer it appears to the Corporation that any house is infested with vermin the Corporation shall give notice in writing to the occupier of such house or if the same be vacant to the owner thereof requiring him within a period to be specified in such notice to cleanse such house or the portion thereof specified in the notice and any articles therein and if so required in the notice to remove the wall paper from the walls of such house or the portion thereof specified in the notice and to take such other steps for the purpose of destroying and removing vermin as the case may require. A.D. 1914.

(3) If the person to whom a notice under subsection (2) of this section is given fails to comply therewith within the time therein specified he shall be liable to a penalty not exceeding ten shillings for every day during which he makes default in complying with the requirements of such notice and the Corporation may if they think fit at any time after the expiration of the period specified in the notice themselves do any work required by the notice to be done and all reasonable costs and expenses incurred by the Corporation in so doing shall (subject as herein-after provided) be recoverable from the person making the default.

(4) Any person who shall wilfully obstruct any authorised officer or servant of the Corporation in carrying out the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(5) Upon any proceedings under this section the court shall inquire as to whether any requirement contained in any notice given or any work done by the Corporation was reasonable and as to whether the costs and expenses incurred by the Corporation in doing such work or any part thereof ought to be borne wholly or in part by the person to whom the notice was given and the court may make such order concerning such costs and expenses or their apportionment as appears to the court to be just and equitable under the circumstances of the case.

26.—(1) Section 90 (Byelaws as to houses let in lodgings) of the Public Health Act 1875 shall operate so as to empower the Corporation to make byelaws with respect to the following matters relating to houses which are let in lodgings or occupied by members of more than one family (that is to say):—

Provisions
as to houses
let in
lodgings.

(A) For requiring a separate approach to each room or tenement separately occupied without passing through any other room or tenement:

A.D. 1914.

(b) For requiring all bedding supplied to the lodgers to be kept in reasonable repair.

(2) If at any time it appears to the Corporation that in any such house sufficient and suitable accommodation for the cooking and storage of food is not provided for the use of each family occupying such house on the storey or one of the storeys in which are situate the rooms or lodgings in the separate occupation of such family the Corporation may cause notice to be served on the owner of such house requiring him within such reasonable time as may be specified in the notice to provide sufficient and suitable accommodation for the purpose aforesaid and any owner failing to comply with any such requirement within the period prescribed in the notice shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

As to houses
without
water
supply.

27.—(1) The owner of any dwelling-house erected after the passing of this Act which is not provided with a proper and sufficient water supply within such dwelling-house who shall occupy or allow to be occupied such dwelling-house and the owner of any dwelling-house erected before the passing of this Act which is not provided with a proper and sufficient water supply within such dwelling-house who shall occupy the same or allow the same to be occupied shall respectively be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(2) Provided that—

(a) The owner of any dwelling-house erected before the passing of this Act shall not be liable to the penalties provided by subsection (1) of this section unless the Corporation shall have given to such owner one month's notice in writing requiring him to provide such dwelling-house with a proper and sufficient water supply within such dwelling-house:

(b) The Corporation shall repay to the owner of any such dwelling-house erected before the passing of this Act one third of the amount reasonably expended by him in complying with the requirements of such notice (including the cost of providing and fixing any necessary sink and connexion to the drain):

(c) This section shall not apply to a dwelling-house erected before the passing of this Act which has no scullery or to any dwelling-house in respect of which a sewer or drain and a water main are not reasonably available. A.D. 1914.

28.—(1) The Corporation may by notice in writing require the owner or occupier of any dwelling-house warehouse or shop to provide portable dustbins of galvanised iron or other impervious material in lieu of ashpits or ashtubs or other receptacles for refuse and such bins shall be of such size and construction as may be approved by the Corporation. Regulation
dustbins.

(2) Any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation under this section shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings.

(3) Provided that this section shall not apply to any ashpits or ashtubs or other receptacles for refuse in use at the passing of this Act so long as the same are of suitable material size and construction and in proper order and condition and for a period of five years after the passing of this Act this section shall not apply to any ashpits or ashtubs or other receptacles for refuse in use at the passing of this Act which complied with the byelaws in operation at the time when they were provided and which are in proper order and condition.

29.—(1) (a) Where the medical officer certifies that the cleansing and disinfecting of any building (including in that term any boat tent shed or similar structure used for human habitation) would tend to prevent or check pulmonary tuberculosis the town clerk shall give notice in writing to the owner or occupier of such building that the same or any part thereof will be cleansed and disinfected by the Corporation at the cost of the Corporation unless the owner or occupier of such building informs the Corporation within twenty-four hours from the receipt of the notice that he will cleanse and disinfect the building or the part thereof to the satisfaction of the medical officer within the time to be fixed in the notice. If within twenty-four hours from the receipt of such notice the owner or occupier of such building has not informed the Corporation as aforesaid or if having so informed the Corporation as aforesaid he fails to have the building or the part thereof cleansed and Disinfection
in case of
pulmonary
tuberculosis.

A.D. 1914. — disinfectd as aforesaid within the time fixed by the notice the building or the part thereof shall be cleansed and disinfected by the officers and at the cost of the Corporation under the superintendence of the medical officer. Provided that any such building or part thereof may without any such notice being given as aforesaid but with the consent of the owner or occupier be cleansed and disinfected by the officers and at the cost of the Corporation under the superintendence of the medical officer.

(b) For the purpose of carrying into effect the provisions of this subsection the Corporation may by any officer who shall be authorised in that behalf in writing under the hand of the town clerk and who shall produce his authority enter on any premises between the hours of ten o'clock in the forenoon and six o'clock in the afternoon.

(c) Every person who shall wilfully obstruct any duly authorised officer of the Corporation in carrying out the provisions of this subsection shall be liable to a penalty not exceeding forty shillings and if the offence is a continuing one to a daily penalty not exceeding twenty shillings.

(2) (a) The medical officer if generally empowered by the Corporation in that behalf may by notice in writing require the owner of any household or other articles books things bedding or clothing which have been exposed to the infection of pulmonary tuberculosis to cause such articles books things bedding or clothing to be delivered over to an officer of the Corporation for removal for the purpose of disinfection and any person who fails to comply with such requirement shall be liable to a penalty not exceeding five pounds :

Provided that in the case of private books documents accounts or papers of value to the owner or containing private information which the owner desires to safeguard such books documents or papers shall be entrusted to confidential and responsible officials who shall be sworn to secrecy and where possible the owner or his representative shall be entitled personally to witness such disinfection and to keep such books documents and papers under his observation until they are returned to his possession.

(b) Such articles books things bedding and clothing shall be disinfected by the Corporation and brought back and delivered to the owner free of charge.

(3) If any person sustains any damage by reason of the exercise by the Corporation of any of the powers of this section

in relation to any matter as to which he is not himself in default full compensation shall be made to such person by the Corporation and the amount of compensation shall be recoverable in and in the case of dispute may be settled by a court of summary jurisdiction. A.D. 1914.

30.—(1) If the medical officer certifies in writing that any person is suffering from pulmonary tuberculosis and is in an infectious state and that the lodging or accommodation with which such person is provided is such that proper precautions to prevent the spread of the infection cannot be taken or that such precautions are not being taken the medical officer may make application to a court of summary jurisdiction and such court upon oral proof of the allegations in such certificate and subject to examination by a medical man to be nominated by them may if they think fit make an order for the removal of such person to a suitable hospital or place for the reception of the sick provided within the city or within a convenient distance of the city and for the detention and maintenance of such person therein for such period not exceeding three months as may be determined by such order or such further period not exceeding three months as may be determined by any further order made under and in accordance with the provisions of this section. Removal of persons suffering from pulmonary tuberculosis to hospital.

(2) The medical officer shall give the person so suffering or some person being in charge of the person so suffering three clear days' notice of his intention to make such application and of the time and place when and where such application will be made.

(3) The Corporation may in their discretion during the period of detention make payments for or towards the effective support and maintenance of the relatives of or those actually dependent upon any person so suffering and removed to a suitable hospital or place as aforesaid whether voluntarily or in pursuance of an order made by the court as aforesaid and on the hearing of any application under this section the court shall take into consideration the amount necessary for such effective support and maintenance and shall not make an order unless they are satisfied that the Corporation will make a sufficient payment in any case in which it appears that a contribution is necessary for the support and maintenance of such relatives or dependents.

(4) An order under this section may be addressed to such constable or officer of the Corporation as the court making the same may think expedient and any person who wilfully

A.D. 1914. disobeys or obstructs the execution of such order shall be liable to a penalty not exceeding ten pounds.

(5) At any time after but not before the expiration of six clear weeks from the making of the order an application may be made to the court by or on behalf of the person in respect of whom the order was made for the rescission of the order and such court may make a rescission order accordingly if having regard to the circumstances of the case they are of opinion that it is right and proper that such rescission order should be made. Such person or other person making the application shall give to the medical officer not less than three clear days' notice of his intention to make the application and of the time and place when and where the application will be made.

(6) The provisions of this section shall cease to be in force at the expiration of five years from the date of the passing of this Act unless they shall have been continued by Act of Parliament or by Provisional Order made by the Local Government Board and confirmed by Parliament which Order the Local Government Board are hereby empowered to make in accordance with the provisions of the Public Health Act 1875.

Prohibition
of blowing
or inflating
of carcases.

31. It shall not be lawful to blow or inflate the carcase or any part of the carcase of any animal slaughtered within or brought into the city and any person offending against this enactment or exposing or depositing for sale within the city a carcase which is blown or inflated or any part thereof shall be liable to a penalty not exceeding twenty shillings.

Penalty on
original
vendor of
unsound
food.

32.—(1) Where it is shown that any animal or article liable to be seized under sections 116 to 119 of the Public Health Act 1875 and section 28 of the Public Health Acts Amendment Act 1890 and found in the possession of any person was sold to him by another person for the food of man (the proof that the same was not sold for the food of man resting with the party charged) and when so sold was in such a condition as to be liable to be so seized and to be condemned under section 117 of the Public Health Act 1875 the person who so sold the same shall be punishable as mentioned in section 117 of the Public Health Act 1875 unless he proves that at the time he sold the said animal or article he did not know and had no reason to believe that the said animal or article was in such condition.

(2) Where any article of food has been condemned by a justice under section 117 of the Public Health Act 1875 as amended by section 28 of the Public Health Acts Amendment Act 1890 the person to whom the same belongs or did belong at the time of deposit of such article for the purpose of sale or of preparation for sale as well as the persons in those sections mentioned shall also be punishable as mentioned in section 117 of the Public Health Act 1875 unless he prove that at the time of such deposit he did not know and had no reason to believe that the said article was in such a condition as to be liable to be so condemned.

(3) Before any animal or article liable to be condemned under section 117 of the Public Health Act 1875 as amended by section 28 of the Public Health Acts Amendment Act 1890 and this section is dealt with by a justice the medical officer or the inspector of nuisances shall inform the person in whose custody or possession the same was at the time when it was inspected by the medical officer or inspector of nuisances of the intention of such medical officer or inspector of nuisances to have the same dealt with by a justice and any person who may be liable in respect of such animal or article to a prosecution under the aforesaid provisions shall be entitled to attend the proceedings before the justice and to be heard with his witnesses upon the application for the condemnation of any such animal or article but nothing contained in this subsection shall require the medical officer or inspector of nuisances to give information to any person other than the person in whose custody or possession such animal or article was at the time of inspection or shall render it necessary to delay the condemnation of such animal or article to enable any person to attend the proceedings.

(4) The Corporation shall forthwith after the passing of this Act give notice of the effect of the provisions of this section by advertisement in the principal local newspapers circulating in the city.

33.—(1) Any premises used or proposed to be used for the preparation or manufacture of potted or preserved meat fish or other food intended for the purposes of sale shall be registered by the owner or occupier thereof with the Corporation from time to time and no premises shall be used for the purposes aforesaid unless the same are registered as aforesaid.

Registration
of premises
used for
manufacture
&c. of potted
meats.

A.D. 1914.

(2) Any person offending against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) Provided that the provisions of this section shall have no application to any premises occupied as a factory or workshop of which notice is required by subsection (1) of section 127 (Notice of occupation of factory or workshop) of the Factory and Workshop Act 1901 to be given or shall in any way affect the operation of that Act.

(4) This section shall not apply to any premises used as a hotel.

As to contamination of sausages and other foods.

34. From and after the passing of this Act any person who within the city in the manufacture storage or preparation for sale of sausages à la mode beef pressed or pickled meat or other similar commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination shall be liable for any such offence to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Further provisions as to rivers.

35.—(1) Section 14 (Power to cleanse River Rea and other streams) of the Act of 1883 shall extend and apply to any rivers streams brooks or watercourses forming the boundary of the city in the same manner as it now applies to rivers streams brooks or watercourses within the city.

(2) Section 15 (Power to improve Rivers Rea and Cole Hockley Brook and Bourne Brook) of the Act of 1883 shall extend and apply to all rivers streams brooks or watercourses within the city or forming the boundary thereof and the Corporation their officers and servants may after twenty-four hours' notice served on the occupier or in case of emergency without notice from time to time enter on any premises in the daytime to do all necessary acts for the purposes of the said section 15 as amended by this section the Corporation making compensation for all damage occasioned thereby so that the same acts be executed with all convenient despatch and without injuring the foundation or wall of any building already erected or to be lawfully erected adjoining or over the said rivers streams brooks or watercourses.

36.—(1) It shall not be lawful to culvert cover over stop up obstruct or divert any stream or watercourse within or forming the boundary of the city except in accordance with plans and sections to be submitted to and approved by the Corporation such approval not to be unreasonably withheld or delayed and any person acting in contravention of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings: A.D. 1914.
Streams not
to be covered
over ob-
structed or
diverted
except in
accordance
with plans.

Provided that—

(a) No requirement of the Corporation in relation to such plans and sections shall operate to compel any such owner to receive upon his land or to make provision for the passage of a greater quantity of water than he would have been obliged to receive or to permit to pass if this section had not been enacted:

(b) If with the consent of such owner the Corporation shall require him to make provisions for the passage of a larger quantity of water than he is obliged to permit to pass at the time of the commencement of any work under this section any additional cost occasioned by such requirement shall be borne by the Corporation.

(2) If any difference shall arise between the Corporation and such owner as to the expediency or necessity of the works required by the Corporation to be executed under this section such difference shall be referred to arbitration and the provisions of the Arbitration Act 1889 shall apply thereto.

(3) Section 72 (Streams not to be covered over except in accordance with plans) of the Act of 1903 is hereby repealed.

37. The provisions of section 102 (Power of entry of local authority) and section 103 (Penalty for disobedience of order) of the Public Health Act 1875 shall extend and apply to the purposes of this Part of this Act as if those purposes had been mentioned in the said section 102. Power to
enter
premises.

PART VI.

POLICE AND HACKNEY CARRIAGES.

38. Any property found and handed to a police constable of the city shall be taken to a place to be appointed for the Lost pro-
perty.

A.D. 1914. purpose by the Corporation and if the same be not claimed by the owner within three months after the finding thereof the Corporation shall give notice in writing to the finder and if such property be not claimed by the owner or the finder within a further period of three months it may be sold as unclaimed property by public auction after notice by advertisement in one or more local newspapers once in each of two successive weeks and the proceeds thereof carried to the borough fund.

Penalty on persons having property suspected to have been stolen.

39. Any person brought before a court of summary jurisdiction charged with having in his possession custody or control any gold silver platinum or other precious metal or brass copper aluminium German silver or other similar base metal in each case either pure or alloyed and whether in the shape of ingots sheets leaf scrap dust lemel sweepings or other unmanufactured state which the court has reasonable ground to believe has been stolen or unlawfully acquired or detained and who does not account to the satisfaction of the court for his possession custody or control of the same shall for every such offence be liable to a penalty not exceeding twenty pounds.

Extension of section 4 of Vagrancy Act 1824 to canals &c.

40.—(1) Every person wandering abroad and lodging in any canal boat or in the cabin of any canal boat upon any canal in the city not having any visible means of subsistence and not giving a good account of himself; and

(2) Every person wilfully openly lewdly and obscenely exposing his person in or on any canal or on the towing path of any canal or in any unfenced vacant land adjoining any canal or any such towing path or in the bed or on the banks of any river or stream or in any unfenced vacant land adjoining any river or stream in the city with intent to insult any female; and

(3) Every person playing or betting by way of wagering or gaming on any such canal towing path or in any such vacant land or in or on any such bed or banks of any river or stream or vacant land adjoining the same as is mentioned in the last preceding paragraph hereof

shall be deemed a rogue and a vagabond within the meaning of the Vagrancy Act 1824 as amended by the Vagrant Act Amendment Act 1873 and may be dealt with accordingly.

Amendment of Act of 1883 as to hackney carriages.

41.—(1) Section 120 (As to carriages plying for hire at railway stations) of the Act of 1883 shall be amended by the substitution of "the city" for "so much of the borough as

“ lies within a radius of five miles from the north end of
“ Stephenson Place in the borough where the Attwood Statue
“ now stands.”

A.D. 1914.
—

(2) Section 122 (Power to make byelaws respecting omnibuses &c.) of the Act of 1883 shall be amended by substituting the whole of the city for the distance mentioned in paragraphs (e) and (f) respectively of that section.

42. An occasional licence for a public vehicle may be granted by the Corporation to be in force for such day or days or other periods less than one year as may be specified in the licence.

Power to grant occasional licences.

43.—(1) The Corporation may require any taximeter or other similar apparatus used or intended to be used on any hackney carriage plying for hire within the city to be tested and inspected and they may also require any such taximeter or other similar apparatus to be re-tested and re-inspected at such reasonable intervals of time as they may prescribe and no such taximeter or other similar apparatus shall be used or continued in use unless the same be certified to register correctly.

Power to inspect and certify taximeters.

(2) Any person using a taximeter or other similar apparatus which is not so certified or failing to submit the same for testing and inspection at such reasonable intervals of time as aforesaid shall be liable to a penalty not exceeding forty shillings.

44.—(1) Any unfenced ground or any court or passage adjoining or abutting upon any street (including any wash-houses or other outhouses situate in such courts and used in common by the occupiers of premises abutting thereon) shall for the purposes of the Vagrancy Act 1824 and of any Act for the time being in force altering or amending the same be deemed to be a public place.

As to unfenced grounds and courts.

(2) Section 106 (As to unfenced grounds and courts) of the Act of 1903 is hereby repealed.

PART VII.

FIRE BRIGADE PENSION FUND.

45. This Part of this Act shall come into operation on the first day of October nineteen hundred and fourteen except for the purpose of enabling the Corporation to fix a limit of age below which a member of the permanent fire brigade is not to

Commencement of Part VII. of Act.

A.D. 1914. — he entitled to retire upon a pension without a medical certificate for which purpose this Part of this Act shall operate from the date of the passing thereof.

Establish-
ment of
fire brigade
pension
fund.

46.—(1) There shall be established a fund to be called “the fire brigade pension fund” and the members of the permanent fire brigade of the city shall be entitled to pensions as herein-after provided and the following provisions of the Police Act 1890 (namely):—

Sections 1 and 2;

Subsections (1) (2) (6) and (7) of section 3;

Subsections (1) (2) (3) and (5) of section 4;

Sections 5 to 13 both inclusive;

Subsection (1) of section 15;

Section 16 except paragraphs (b) (c) (h) and (k);

Section 18;

Subsection (1) of section 19;

Sections 20 and 21;

Subsection (3) of section 33; and

The First Schedule

as amended by the Police Act 1893 shall apply to the permanent fire brigade with the following modifications:—

- (a) “A member of the permanent fire brigade” shall be substituted for “a constable”;
- (b) “Service in the permanent fire brigade” shall be substituted for “service in the police”;
- (c) “The permanent fire brigade” shall be substituted for “the police force”;
- (d) “The Corporation” shall be substituted for “the police authority”;
- (e) “The chief officer for the time being of the fire brigade” shall be substituted for “the chief officer of the police”;
- (f) “The fire brigade pension fund” shall be substituted for “the pension fund”;
- (g) “The fund and rate out of which the expenses of the permanent fire brigade are paid” shall be substituted for “the police fund and the rate levied for the police fund”;

(h) The fixed scale for ordinary pensions under sub-section (2) (a) of section 3 of the Police Act 1890 shall be that set out in the First Schedule to this Act and shall apply to all members of the permanent fire brigade :

(i) The deductions from the pay of a member of the permanent fire brigade made under section 15 of the Police Act 1890 shall be at the rate of two and a half per centum per annum on his pay :

(j) The approved service of a member of the permanent fire brigade for any period before as well as after the passing of this Act and his approved service in the police force of the city for any period either before or after the passing of this Act shall be reckoned as approved service and his service for not less than three years either wholly or partly before or after the passing of this Act in any police force or in any fire brigade in which such service would reckon for pension in any part of the United Kingdom from which he removed with the sanction of the chief officer or police authority of that force to the permanent fire brigade shall (notwithstanding the sanction was not given in writing) be reckoned as approved service for the said period in the permanent fire brigade.

(2) (a) All money standing to the credit of the existing fire brigade superannuation fund shall be carried to the credit of the fire brigade pension fund.

(b) The Corporation may if they think fit pay to the credit of the fire brigade pension fund any sum or sums of money paid to the Corporation by any company body or person for or in respect of the services of the permanent fire brigade.

(3) The provisions of the Birmingham Order 1897 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 16) Act 1897 shall not apply to any member of the permanent fire brigade of the city.

(4) The existing fire brigade superannuation scheme made in pursuance of the Act of 1883 is hereby annulled but without prejudice to the right of any person to any pension payable in pursuance of that scheme before the commencement of this Part

A.D. 1914. of this Act and any such pension shall be paid out of the fire brigade pension fund.

(5) A member of the permanent fire brigade shall be deemed to be a member of a police force for the purposes of the Workmen's Compensation Act 1906.

As to service in police force and fire brigade.

47.—(1) Where a person has served both in the police force of the city and as a member of the permanent fire brigade he shall be entitled to reckon his approved period of service in both capacities for the purpose of pension and the pension shall be on the scale and subject to the statutory requirements affecting pensions in the service from which he last retires.

(2) The pension shall be payable from the police pension fund of the city and from the fire brigade pension fund in such proportions as the Corporation may determine having regard to the period of service and the salary received in each capacity.

Return to Secretary of State.

48. The Corporation shall make annually a return containing such particulars of the capital income and expenditure of the permanent fire brigade pension fund as the Secretary of State may direct and verified if the Secretary of State so require by the statutory declaration of the treasurer of the fund.

Contributions by Corporation.

49. The Corporation shall pay such contributions to the permanent fire brigade pension fund as the Secretary of State may by order determine to be a fair contribution in respect of the pensions gratuities or allowances by this Act authorised to be paid and every such contribution shall be charged upon and payable out of the borough fund as part of the expenses of the permanent fire brigade.

PART VIII.

FINANCIAL AND MISCELLANEOUS PROVISIONS.

Power to borrow.

50.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall repay all money so borrowed within the

respective periods mentioned in the third column of the said A.D. 1914.
table (namely) :—

1.	2.	3.
Purpose.	Amount.	Period for Repayment.
	£	
(a) For and in connexion with the construction of the tramways authorised by this Act.	139,823	Thirty years from the date or dates of borrowing.
(b) For and in connexion with the electrical equipment of the tramways authorised by this Act.	34,543	Twenty years from the date or dates of borrowing.
(c) For tramway rolling stock - -	18,000	Fifteen years from the date or dates of borrowing.
(d) For and in connexion with the purchase of lands for and the execution of the street improvements authorised by this Act.	46,958	Forty years from the date or dates of borrowing.
(e) For paying the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) The Corporation may also with the consent of the Board of Trade borrow such further money as may be necessary for any of the purposes of Part II. of this Act or of the tramway undertaking of the Corporation and may with the consent of the Local Government Board borrow such further money as may be necessary for any purposes of this Act other than the purposes of that undertaking.

Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Board with whose consent it is borrowed.

(3) The yearly sums required to be provided in respect of the principal moneys borrowed under the provisions of this Act shall—

As regards money borrowed for the purposes (a) (b) and (c) herein-before mentioned and for the purposes of the tramway undertaking of the Corporation be defrayed out of the revenue arising from that undertaking :

As regards money borrowed for the purposes (d) and (e) herein-before mentioned be defrayed out of the revenue arising from the tramway undertaking and the borough fund of the city in such proportions as the Corporation may by resolution determine :

As regards money borrowed with the consent of the Local Government Board be defrayed out of such fund or rate as may be prescribed by that Board.

A.D. 1914.

Application
of sinking
funds for gas
and water
annuities.

51.—(1) The Corporation may if they think fit at any time apply any money forming part of the sinking fund established by the Corporation in pursuance of section 24 (Sinking fund for annuities) of the Birmingham (Corporation) Gas Act 1875 (in this section called “the gas sinking fund”) for the purpose of redeeming any annuity issued in pursuance of the Birmingham (Corporation) Water Act 1875 and they may if they think fit at any time apply any money forming part of the sinking fund established by the Corporation in pursuance of section 27 (Sinking fund for annuities) of the last-mentioned Act (in this section called “the water sinking fund”) for the purpose of redeeming any of the annuities issued in pursuance of the Birmingham (Corporation) Gas Act 1875.

(2) Any money forming part of the gas sinking fund applied in pursuance of this section shall be deemed to be a debt due to that fund from the water undertaking of the Corporation and shall until repaid bear interest at the rate of three-and-a-half per centum per annum and any money forming part of the water sinking fund applied in pursuance of this section shall be deemed to be a debt due to that fund from the gas undertaking of the Corporation and shall until repaid bear interest at the rate of three-and-a-half per centum per annum.

Museum and
School of
Art Com-
mittee.

52. Notwithstanding anything contained in section 8 (Power to appoint committees) of the Act of 1883 the Corporation may if they think fit appoint as members of any committee appointed for the purposes (except in relation to the school of art) of section 19 (Dissolution of Museum and School of Art Committee) of the Act of 1912 or for any purposes (except as aforesaid) connected with the buildings property powers and authorities referred to in that section not more than four persons who are not members of the council.

Birmingham
and Midland
Institute
may acquire
additional
lands.

53. The Birmingham and Midland Institute may accept the grant of and may purchase or take (by agreement but not otherwise) and may hold in addition to the lands mentioned in the Birmingham and Midland Institute Act any lands and hereditaments not exceeding in the whole three acres which they may require for the purposes for which they are incorporated.

For re-
moving
doubts as to
jurisdiction

54. Whereas by the City of Birmingham Order 1891 which was confirmed by the Local Government Board's Provisional Order Confirmation (No. 13) Act 1891 the Birmingham (Extension)

Order 1909 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1909 and the Order of 1911 the area of the city was enlarged by the addition thereto of areas situate in the counties of Stafford Warwick and Worcester:

A.D. 1914.
—
of probate
registry.

And whereas by each of the said Orders it was provided that the boundaries of the counties thereby affected should be altered so that the city should be wholly situate in the county of Warwick:

And whereas notwithstanding the provisions of the said Orders doubts have arisen whether the city is situate wholly in the county of Warwick for the purposes of the Court of Probate Act 1857 and of the Acts amending the same Be it therefore enacted for the removal of such doubts that the city is wholly comprised in the county of Warwick for the purposes of the Court of Probate Act 1857 and of the Acts amending that Act.

55. The justices of the peace for the city sitting at a special petty session in and for the city shall be the authority for correcting and allowing the lists of men qualified and liable to serve on juries within the parishes comprised in the city and shall have the powers and perform the duties mentioned in the County Juries Act 1825 and the Acts amending the same as if they had been referred to in section 10 of the said Act of 1825 instead of the justices referred to in that section and the clerk to the justices for the city shall throughout those Acts be substituted for the clerk to the justices therein referred to and those Acts shall within the city be construed accordingly.

City justices
to settle
jury lists.

56.—(1) The remuneration of assistants to the clerk to the justices appointed and employed in pursuance of section 167 (Assistants to justices' clerk) of the Act of 1903 and any expenses incurred by the said clerk in the provision and maintenance of his offices or the provision of books stationery or other things necessary for the due performance of the duties of his office shall (subject to the amounts of such remuneration and expenses being approved by the Corporation) be paid by the Corporation.

Expenses of
justices'
clerk.

(2) Provided that this section shall not come into operation until the salary of the clerk to the justices has been varied in the manner prescribed by law and that in determining the amount of his salary regard shall be had to the provisions of this section.

A.D. 1914.

(3) Any expenditure incurred by the Corporation under this section shall be defrayed out of the borough fund.

Further provisions as to swimming baths and open bathing places.

57. Notwithstanding anything to the contrary contained in the Baths and Washhouses Acts 1846 to 1899 the following provisions shall have effect:—

(1) The power of the Corporation to make byelaws for the management use and regulation of public baths and open bathing places shall extend to enable them to permit any swimming bath or open bathing place to be used for the purpose of family bathing (that is to say by any males and females members of families bathing together at the same time) or of mixed bathing (that is to say by males and females bathing together at the same time) during such hours and subject to such regulations as shall be prescribed in such byelaws Provided that by such byelaws provision shall be made for ensuring that separate dressing accommodation shall be provided and used by males above eight years old and females respectively and proper costumes worn :

(2) The Corporation may make a charge for each person using any open bathing place not exceeding two-pence during the hours of ordinary or family bathing and not exceeding fourpence during the hours of mixed bathing.

Use of swimming baths for exhibitions &c.

58.—(1) The Corporation may close to the public and may reserve the exclusive use of any swimming bath or open bathing place belonging to them and may grant the use thereof either gratuitously or for payment for swimming contests practices aquatic exercises or for any other entertainment or exhibitions or for meetings and may demand and take or authorise to be demanded and taken at the door or entrance of such swimming bath or open bathing place such sums for the exclusive use of such bath or place or for admission of persons thereto as they may think fit.

(2) Section 151 (Power to close baths and charge for exclusive use thereof) of the Act of 1903 is hereby repealed.

For protection of Great Western

59. For the protection of the Great Western Railway Company (in this section hereinafter referred to as "the Great Western Company") the following provisions shall unless other-

wise agreed between the Corporation and the Great Western A.D. 1914.
Company apply and have effect (that is to say):—

Railway
Company.

(1) In this section the word “apparatus” means any posts brackets electric wires conductors apparatus and any similar appliances to be used as or for the purposes of a motive power for the carriages running on Tramway No. 10 authorised by this Act (herein-after in this section referred to as “the said tramway”) and includes also any subways tunnels tubes openings excavations channels and pipes for the purposes of such apparatus:

(2) All works in connexion with the said tramway where the same shall be made upon or will otherwise affect the bridge of the Great Western Company over which it is proposed to construct the said tramway shall be executed so as to interfere as little as possible with the structure of the said bridge and according to plans sections and specifications to be previously submitted to and approved by the Great Western Company or in case of difference between them and the Corporation by an arbitrator to be appointed as herein-after provided All such works shall be executed and thereafter maintained according to the plans sections and specifications so approved and under the superintendence if the same be given and to the reasonable satisfaction of the Great Western Company The Corporation shall so construct maintain and use the said tramway works and apparatus as not to injuriously affect the said bridge and in the event of any injury being occasioned to the said bridge by the construction maintenance or user of the said tramway works and apparatus the Great Western Company may make good the injury and may recover from the Corporation the reasonable expenses of so doing:

(3) If by reason of the construction of the said tramway upon across or over the said bridge it becomes necessary to strengthen or reconstruct the said bridge and such strengthening or reconstruction would not otherwise be necessary the Great Western Company shall give notice accompanied by sufficient plans sections and specifications to the Corporation of such

A.D. 1914.

works as may be reasonably necessary and may after twenty-eight days from the date of the notice or forthwith in case of emergency proceed with all due despatch to execute such works as may be reasonably necessary in that behalf and the Great Western Company may recover from the Corporation all moneys reasonably expended by them in the execution of such works as aforesaid or in connexion therewith:

- (4) The Corporation shall not in any manner in the execution maintenance user or repair of the said tramway or apparatus obstruct or interfere with the free uninterrupted and safe user of the railway of the Great Western Company under the said bridge or any traffic thereon:
- (5) The Corporation shall be responsible for and make good to the Great Western Company all losses damages and expenses which may be occasioned to the Great Western Company or their said railway or to any company or person using their railway by or by reason of the construction maintenance or failure to maintain the said tramway or apparatus or by or by reason of any act default or omission of the Corporation or of any person in their employ or of any contractors for such intended works or any part thereof and the Corporation shall effectually indemnify and hold harmless the Great Western Company from all claims and demands upon or against them by reason of such construction maintenance or failure or of any such act default or omission:
- (6) Whenever and so often as the Great Western Company shall require in the exercise of their existing statutory powers to lift widen lengthen strengthen reconstruct alter or repair the said bridge or to widen or alter their railway thereunder and it shall be necessary for effecting any such purposes that the working and user of the said tramway shall be wholly or partially stopped or delayed or that such tramway should be temporarily diverted or wholly or in part temporarily taken up or removed the Great Western Company shall (except in cases of emergency when they shall give the longest notice practicable) give to the Corporation twenty-eight days' notice in writing requiring

such stoppage delay or diversion taking up or removal and the working and user of such tramway shall be stopped or delayed or such tramway shall be diverted or taken up or removed accordingly by the Corporation but only for so long as shall be absolutely necessary for effecting such purpose and without the Great Western Company being liable for any compensation claims and demands charges costs and expenses for or in respect of such stoppage or delay or in any way relating thereto: A.D. 1914.

- (7) The Corporation shall from time to time pay to the Great Western Company any reasonable additional expense which the Great Western Company may reasonably incur in effecting such lifting widening strengthening reconstructing altering or repairing as is mentioned in the last preceding subsection by reason of the existence or user of the said tramway and the apparatus or equipment connected therewith:
- (8) The Corporation shall not under the powers of this Act erect any post or posts or other works on or make attachments to any part of the said bridge without the consent in writing of the principal engineer of the Great Western Company which consent shall not be unreasonably withheld. Such attachments if allowed shall be in all respects subject to the reasonable approval of the said engineer and shall be temporarily removed at any time when reasonably required by him in connexion with the maintenance reconstruction or alteration of the said bridge:
- (9) If having regard to the proposed position of the said tramway or the apparatus or equipment connected therewith when considered in relation to the position of the works of the Great Western Company at any point where the said tramway will be constructed over the said railway it becomes necessary in order to avoid danger from the breaking or falling of wires that the electrical telegraphic telephonic or signal wires or apparatus of the Great Western Company shall be altered the Great Western Company may execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Corporation:

A.D. 1914.

(10) Before exercising any of the powers contained in the section of this Act of which the marginal note is "Further provisions as to rivers" where the same may affect the railways lands or property of the Great Western Company the Corporation shall give twenty-one days' notice to the engineer of the Great Western Company of their intention to exercise such powers together with a plan and section of the intended works for his reasonable approval and the Corporation shall not interfere with the stability of the piers or abutments of any bridge viaduct or other work forming part of the railways of the Great Western Company Any works of the Corporation under the provisions of the said section under or within twenty-five yards of the railways and other works of the Great Western Company shall be carried out according to such plans and sections and under the superintendence if the same be given and to the reasonable satisfaction of the engineer of the Great Western Company :

(11) If any difference arises under this section between the Corporation and the Great Western Company the same shall unless otherwise agreed be settled by an arbitrator to be appointed by the President of the Institution of Civil Engineers on the application of either party and subject as aforesaid in accordance with the provisions of the Arbitration Act 1889.

Period for compulsory purchase of lands.

60. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Compensation in case of recently acquired interests.

61. For the purpose of determining any disputed question of compensation payable in respect of lands under the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the eighteenth day of November nineteen hundred and thirteen if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

62.—(1) The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Corporation award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Corporation by the claimant giving sufficient particulars and in sufficient time to enable the Corporation to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Corporation has been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant.

A.D. 1914.
Costs of
arbitration
in certain
cases.

(2) Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Corporation to amend the statement in writing of the claim delivered by him to the Corporation in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Corporation if they object to the amendment and such amendment shall be subject to such terms enabling the Corporation to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case.

(3) Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

63. The Corporation in addition to any other lands acquired by them in pursuance of this Act may by agreement purchase take on lease acquire and hold further lands for the purposes of this Act but the quantity of lands held by the Corporation in pursuance of this section shall not at any time exceed ten acres Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands.

Power to
purchase
additional
lands by
agreement.

64. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Corporation or of or by any officer of the Corporation under the provisions of Part IV. V. or VI. of this Act or by any conviction

As to appeal.

A.D. 1914.

or order by a court of summary jurisdiction under any provision of those Parts may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction the Corporation may in like manner appeal.

Recovery of demands.

65. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Informations by whom to be laid.

66. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaws made thereunder may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any police officer acting for or within the city.

Recovery of penalties &c.

67. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Damages and charges to be settled by justices.

68. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses costs or charges in case of dispute respecting the same may be settled and determined by a court of summary jurisdiction before whom any offender is convicted.

Judges not disqualified.

69. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Saving for indictments.

70. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any

matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. A.D. 1914.

71. The following sections of the Act of 1883 of the Act of 1903 and of the Act of 1905 so far as the same are applicable in that behalf shall with any necessary modifications extend and apply to the exercise of the powers of this Act in the same manner as if those sections were re-enacted in this Act (namely):—

Application
of provisions
of Acts of
1883 1903
and 1905.

Act of 1883—

Section 282 (Power to execute works in default of person liable);

Section 284 (Provision in case of occupier opposing execution of Act);

Section 289 (Protection of members and officers of Corporation);

Section 294 (Powers of Act cumulative):

Act of 1903—

Section 157 (Inquiries by Local Government Board);

Section 163 (Compensation how to be determined);

Section 169 (Crown rights):

Act of 1905—

Section 23 (Subsidiary works);

Section 24 (Temporary stoppage of streets);

Section 27 (Correction of errors in deposited plans and books of reference);

Section 30 (Power to persons under disability to grant easements &c.);

Section 31 (Owners may be required to sell parts only of certain lands and buildings);

Section 32 (Underpinning of houses near works);

Section 35 (Power to retain sell &c. lands);

Section 41 (Moneys to be raised); and

Section 44 (Audit of accounts):

Provided that in the application of section 31 of the Act of 1905 the Second Schedule to this Act shall be deemed to be referred to instead of the Second Schedule to that Act.

A.D. 1914. **72.** All the costs charges and expenses preliminary to and
Costs of Act. of and incidental to the preparing applying for obtaining and
passing of this Act as taxed by the taxing officer of the House
of Lords or of the House of Commons shall be paid by the
Corporation out of the revenue of the tramway undertaking of
the Corporation or out of the borough fund or out of money
to be borrowed for that purpose.

The SCHEDULES referred to in the foregoing Act. A.D. 1914.

THE FIRST SCHEDULE.

PENSION SCALE.

The pension to a member of the permanent fire brigade on retirement shall be as follows:—

- (a) If he has completed fifteen but less than twenty-one years' approved service an annual sum equal to one fiftieth of his annual pay for every completed year of approved service:
- (b) If he has completed twenty-one but less than twenty-five years' approved service an annual sum equal to twenty fiftieths of his annual pay with an addition of an annual sum equal to two fiftieths of his annual pay for every completed year of approved service above twenty years:
- (c) If he has completed twenty-five years' approved service an annual sum equal to thirty-one fiftieths of his annual pay with an addition of an annual sum equal to one fiftieth of his annual pay for every completed year of approved service above twenty-five years so however that the pension shall not exceed two thirds of his annual pay.

If the Corporation fix a limit of age below which a member of the permanent fire brigade is not to be entitled to retire on a pension without a medical certificate such limit shall not be less than fifty years and not more than fifty-five years.

A.D. 1914.

THE SECOND SCHEDULE.

DESCRIPTION OF PROPERTIES OF WHICH PORTIONS ONLY MAY
BE REQUIRED BY THE CORPORATION.

PROPERTIES WITHIN THE CITY OF BIRMINGHAM.

<i>Numbers on Deposited Plans.</i>												
52	53	54	55	64	65	66	67	68	69	75	79	90
91	94	118	123	130	142	143	144	145	146	147	148	149
150	151	152	153	154	155	156	157	158	159	160	161	162
163	164	165	166	167	168	169	170	171	172	173	174	175
176	177	179	180	181	182	183	184	185	186	187	188	189
190	191	193	194	195	196	197	198	199	200	201	204	206
207	208	214	215	216	217	218	219	220	221	222	223	224
225	226	227	228	229	231	232	233	234	235	236	237	238
239	240	241	242	243	244	245	246	247	248	249	250	251
252	253	254	255	256	257	258	259	260	261	262	263	264
265	266	267	268	269	270	271	273	274	275	276	277	279
282	284	285	287	291	292	295	297	301	302.			

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